



2026 South Dakota Legislature

House Bill 1227

HOUSE ENGROSSED

Introduced by: Representative Weems

1 **An Act to increase the annual fee required of an owner of an electric motor vehicle.**

2 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF SOUTH DAKOTA:

3 **Section 1. That § 32-5-188 be AMENDED:**

4 **32-5-188.** In addition to the license fees paid pursuant to the provisions of this
5 chapter for a motor vehicle, the owner of an electric motor vehicle shall pay an annual fee
6 of fifty one hundred dollars. The fee ~~shall~~ must be paid at the time of annual registration
7 as otherwise provided in this chapter. ~~However, the~~ The license fee imposed by this section
8 does not apply to any motorcycle propelled by an electric motor, if the license fee is paid
9 pursuant to § 32-5-9.

10 For the purposes of this section, ~~the term,~~ "electric motor vehicle," means a
11 noncommercial motor vehicle ~~that is propelled by~~ for which the only source of propulsion
12 is an electric motor that draws electricity from a battery ~~that is~~ capable of being recharged
13 from an external source of electricity, and ~~that which~~ may be legally operated on the
14 interstate highways in this state and eligible for registration pursuant to the laws of this
15 state. The electric motor vehicle ~~shall~~ must have been made by a manufacturer primarily
16 for use on public streets, roads, and highways and ~~meets~~ must meet National Highway
17 Traffic Safety Administration standards ~~included~~ provided in 49 C.F.R. § 571 ~~as of~~ (January
18 1, 2021).

19 The fees received pursuant to this section ~~shall~~ must be deposited in the state
20 highway fund.